

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
DAMION MORGAN and SANDY MORGAN,

Index No.
Date Purchased:

Plaintiff(s),
-against-

SUMMONS

Plaintiff Designates Kings
County as Place of
Trial

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and P.O. JONATHAN EPPS,
DET. JESSICA HERRERA, DET. JASON McKEVITT,
SGT. STEVEN CHEI, P.O. GARY JORDAN and
POLICE OFFICERS, DETECTIVES and EXPERTS JOHN
and JANE DOES #1-25, KINGS COUNTY DISTRICT ATTORNEY
and ADA KEVIN O'DONNEL,

Defendant(s).
-----X

Plaintiff Resides at
1181 39th Street #2
Brooklyn, NY 11210

To The Above Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 5, 2024

_____/S/
Rehan Nazrali Esq
Attorneys for Plaintiff(s)
299 Broadway, 17th Fl
New York, NY 10007
(646) 331-9378

Defendants' Addresses:

The City of New York
Corporation Counsel
100 Church Street
New York, N.Y. 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10038

P.O. JONATHAN EPPS
Shield # 17769
Previously 68rd Precinct,
Presently Internal Affairs Bureau,
315 Hudson Street New York, NY 10014

DET. JESSICA HERRERA
Tax # 941040
76th Precinct,
191 Union Street
Brooklyn, NY 11231

DET. JASON McKEVITT
Tax # 942168
Detective Bureau Special Victims
Division since January 2023
and Bronx Special Victims Squad
1086 Simpson Street Bronx, New York, 10459

SGT. DET. STEVEN CHEI
Tax #941541
Squad at Bronx Special Victims Squad since May 2021
32nd Precinct (Military and Extended Leave Desk)
2121 Eastchester Road Bronx, NY, 10461-2251

P.O. GARY JORDAN
Tax #947784
Detective Grade 3 at Special Victims
Division Zone 3 since January 2019
75th Precinct

Police Officers, Detectives and Experts
John and Jane Does 1-25
One Police Plaza
New York, N.Y. 10038

Kings County District Attorney's Office
ADA KEVIN O'DONNELL
350 Jay Street
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

DAMION MORGAN and SANDY MORGAN,

COMPLAINT

Plaintiff,

—against—

Plaintiff demands trial
by Jury of all issues
triable by Jury

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and P.O. JONATHAN EPPS, DET. JESSICA HERRERA, DET.
JASON McKEVITT, SGT. STEVEN CHEI, P.O. GARY JORDAN and POLICE
OFFICERS, DETECTIVES and EXPERTS JOHN and JANE DOES #1-25, KINGS
COUNTY DISTRICT ATTORNEY and ADA KEVIN O'DONNEL,

Defendants.

-----X

Plaintiff, by his attorney, Rehan Nazrali, Esq., alleges for his complaint against
the Defendants upon information and belief:

INTRODUCTION

1. This is an action at law to vindicate the rights of DAMION
MORGAN (hereinafter "Plaintiff"), who was wrongfully arrested, imprisoned,
negligently investigated, maliciously prosecuted, was caused negligent and
intentional infliction of the emotional distress, attempted extortion, forced
confession and duress by Defendants, acting under color of statute, ordinance,

regulation, custom and/or usage, of a right, privilege or immunity secured to Plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States of America with intent to deny Plaintiff his civil rights, all of which arise under Federal Law, particularly Title 42 U.S.C. §§ 1983 and 1988, and the Constitution, Laws and Statutes of the United States and the State of New York.

PARTIES

2. That at all relevant times, Plaintiffs Damion Morgan and Sandy Morgan have been and are residents of the City of New York, County of Kings and State of New York.

3. That at all times hereinafter mentioned the Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned the Defendant, THE NEW YORK CITY POLICE DEPARTMENT (NYPD), was and still is an agency and/or department of the City of New York, authorized and existing under and by virtue of the laws of the City and State of New York.

5. At all relevant times hereto the Defendant NYPD, pursuant to the laws of the City and State of New York establishing its existence and authorizing its operations, operated, controlled, directed, managed and supervised its employees and particularly its Police Officers thereto.

6. That at all relevant times Defendant Jonathan Epps is a Lieutenant at Internal Affairs Bureau in his official capacity since August 2024, moreover at the time of the occurrence he served at Uniformed Promotions Training Unit, Police Service Area 2, Police Service Area 4, Precinct No 68 since January 2008. He is sued in his official and individual capacities.

7. That at all relevant times Defendant Jessica Herrera is a Detective at the Precinct No 76, Badge Number 4414 and at the time of the occurrence served as a Detective with the Detective Bureau Special Victims Division at 79 Precinct, Special Victims Division Zone 3. She is sued in her official and individual capacities.

8. Defendant Gary Jordan, is a Detective Grade 3 at Special Victims Division Zone 3 since January 2019 and also served at the NYPD 75 Precinct since July 2008. He is sued in his official and individual capacities.

9. Defendant Jason P. Mckevitt is a Detective Specialist at Detective Bureau Special Victims Division since January 2023, he has also served at Bronx Special Victims Squad since July 2006. He is sued in his official and individual capacities.

10. Defendant Steven Q. Chei is a Sergeant Detective at a Bronx Special Victims Squad since May 2021, he has also served at Military and Extended Leave Desk at NYPD Precinct No 32 since 2006. He is sued in his official and individual capacities.

11. Defendants John and Jane Does ## 1 through 25 are named fictitiously, the parties' true names being unknown to Plaintiff, the persons intended being the agents, servants and employees of defendant City who are joined individually and in their official capacities, who were at all times acting within the purpose and scope of their agency and employment and who were, together with Officer Jonathan Epps, substantially responsible for the deprivation of rights hereinafter complained of.

12. That at all times hereinafter mentioned the Defendant, THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE (KCDAO), was and still is an agency and/or department of the City of New York, authorized and existing under and by virtue of the laws of the City and State of New York.

13. At all relevant times hereto the Defendant KCDAO, pursuant to the laws of the City and State of New York establishing its existence and authorizing its operations, operated, controlled, directed, managed and supervised its employees and particularly its Assistant District Attorneys thereto.

14. At all relevant times hereinafter, the Defendant CITY, its agents, servants and employees operated, maintained and controlled the KCDAO, and all the ADA's thereof, in particular Defendant ASSISTANT DISTRICT ATTORNEY KEVIN O'DONNEL.

15. That said individual Defendants were acting under color of state law, under color of the statutes, ordinances, regulations, policies, and customs and usages of the City of New York.

CONDITIONS PRECEDENT

16. That on or about November 30, 2023 at 11:50am, Plaintiff's Notice of Claim was duly filed with the Comptroller's office of the City of New York.

17. That said Notice of Claim was filed within 90 days after the causes of action had accrued and as such more than thirty (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.

18. The Plaintiff has been ready, willing and able to submit to an inquiry concerning the justness of his claims as provided by section 50-H of the General Municipal Law attending a 50-H hearing via Video Conference conducted at: 160 Broadway, New York, New York on March 21, 2024 at 3:33 pm.

19. The Plaintiffs have substantially complied with all the conditions precedent to the commencement of this cause of action.

FACTUAL ALLEGATIONS

20. On January 31, 2019 at approximately 10:30 in the morning of that day, Plaintiff was traveling on the intersection of East 56th Street and Farragut Road in the State of New York, County of Kings, City of New York, when he was stopped by Defendant NYPD Detective Jason MsKevitt, traveling in an unmarked Silver Toyota RAV4, 2016-17 for allegedly turning without signaling.

21. Det. McKevitt, approached Plaintiff's stopped vehicle and spoke to him while he was still in his vehicle. Upon communicating to him that he had been stopped because he apparently failed to properly signal Det. McKevitt said that he had allegedly smelled marijuana in the vehicle and ordered Plaintiff to step out of his vehicle.

22. When Plaintiff exited his vehicle Det. McKevitt stated that he was detaining Plaintiff for his safety and he ordered Plaintiff to turn around and proceeded to handcuff him. He did not read or inform Plaintiff about his Miranda rights before or after he cuffed Plaintiff. Once handcuffed, Det. McKevitt walked Plaintiff to his patrol vehicle and placed Plaintiff into the back seat handcuffed.

23. Det. McKevitt then returned to the driver's seat and made a phone call whereupon he stated that "we got him" into the phone. Plaintiff asked Det. McKevitt whether he got the wrong guy but he said "sit tight, someone is coming to talk to you." Plaintiff then waited in the vehicle for 20 minutes before another unmarked police vehicle arrived at the scene.

24. The other vehicle was manned by P.O. Jonathan Epps, Sgt. Steven Chei and Det. Jessica Herrera. P.O. Jonathan Epps, Sgt. Steven Chei and Det. Jessica Herrera, exited their unmarked Silver Ford Fusion, 2017-2018 and approached the RAV4 that Plaintiff was in.

25. P.O Jonathan Epps removed Plaintiff from the RAV4 and marched him into the Ford Fusion where he was placed in the back seat. He was not read or instructed of his Miranda rights by any of these officers. Here Plaintiff asked again if the police officers “sure you have the right guy” to which they responded yes.

26. Thereupon Plaintiff was transported to the 84th precinct.

27. At the 84th precinct P.O. Jonathan Epps escorted Plaintiff into the precinct from the vehicle to a senior police officer/Sgt. in the front lobby of the precinct where he was booked.

28. Plaintiff was then taken to a holding cell upstairs where he remained handcuffed. In the Cell he demanded to know why he was being held and was told that he would find out soon and that he was to wait his turn.

29. Plaintiff waited about 45 minutes before a new police officer entered the holding cell and escorted Plaintiff to an interrogation room where he remained handcuffed.

30. When in the interrogation room Plaintiff met with P.O. Jonathan Epps. P.O. Epps did not read or instruct Plaintiff as to his Miranda rights before he began questioning him. He questioned him about the dollar van, when does he start and how late does he finish. Plaintiff answered. Thereupon

P.O. Epps produced a photograph of a Galle Joseph, and asked if Plaintiff knew her.

31. Plaintiff stated that he did and that he had picked her up once around January 19, 2019 at Avenue I and Flatbush at approximately 12:30 am thereof.

32. While Plaintiff was recounting the facts to P.O Epps as they occurred with regards to the female, P.O Epps banged the table in the interrogation room and demanded that Plaintiff admit he went to the back of the van with the girl and raped and sexually abused the girl.

33. Plaintiff insisted on his innocence in the face of P.O Epps violent, aggressive and manipulative coercive demand. Unable to compel Plaintiff into a forced confession and or statement, P.O Epps left the interrogation room.

34. Thereafter Sgt. Steven Chei entered alone. Sgt. Chei informed Plaintiff that he would be videotaped and that he had to write down his statement which he did.

35. After Plaintiff gave his statement, he complied with P.O Epps' request to provide his DNA, and then Plaintiff was presented in a line-up.

36. After the line-up he was re-handcuffed and brought to Central Bookings in Kings County.

37. There, in Central Booking at Kings County Plaintiff called his wife, Sandy Morgan.

38. Claimant was moved from Central Booking to Brooklyn House Detention Center on January 30, and in the morning of January 31, 2019 he was arraigned.

39. Plaintiff pleaded not guilty and a bail of \$200,000.00 was set by the judge.

40. On January 31, 2019 Claimant was arraigned. His wife Sandy Morgan was at the arraignment and when she heard that Plaintiff was charged with 17 counts of criminal conduct and a huge amount of bail she became distraught and sobbed uncontrollably.

41. After the arraignment, Plaintiff was remanded back to Brooklyn House Detention Center for a week.

42. While Plaintiff was at Brooklyn House Detention Center he was assaulted by another inmate and suffered injuries to his face and mouth. While in Brooklyn House Detention Center he was accosted by other violent inmates who demanded money and food from him in order for him to remain unmolested.

43. Then Plaintiff was transferred to Rikers Island where he remained for two weeks and then returned to Brooklyn House Detention Center about 6 days before his court date on February 26, 2019.

44. On the second day when Plaintiff was transferred to Rikers Island the Claimant was forced to remain in a police van from 9:30 am to 2:30pm with his wrists handcuffed behind his back resulting in permanent injury to his left arm and middle back.

45. Plaintiff's bail was paid before 02/26/2019 but he was freed on 02/26/2019.

46. As a result of the malicious prosecution Plaintiff was caused to attend more than 20 court dates and he and his wife Sandy Morgan spent over \$30,000.00 in costs to defend himself.

47. Plaintiff was swabbed for his DNA at his 3rd Court date again by P.O Epps.

48. Plaintiff was forced to wear an ankle bracelet for approximately 790 days.

49. The alarm on the bracelet would go off during the work and other social and functional occasions causing embarrassment and anxiety to the Plaintiff.

50. Plaintiff has lost over a year from work.

51. That on or about September 7th 2023, all charges against Plaintiff were dismissed.

52. That the above described conduct took place on January 31, 2019 through September 7, 2023 at the subject times and place by the Defendant CITY through and/or by the actions of its agents, servants and employees, namely NYPD DETECTIVE JASON MCKEVITT, Tax # 942168 (in his individual and official capacity), P.O. JONATHAN EPPS, Shield # 17769 (in his individual and official capacity), DET. JESSICA HERRERA, Tax # 941040 (in her individual and official capacity), SGT. DET. STEVEN CHEI, Tax #941541 (in his individual and official capacity), P.O. GARY JORDAN, Tax #947784 (in his

individual and official capacity), THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE (KCDAO), through and/or by the actions of its agents, servants and employees, namely ASSISTANT DISTRICT ATTORNEY KEVIN O'DONNEL (in his individual and official capacity) and constitutes of, variously, false arrest, false imprisonment, abuse of process, malicious prosecution and generally conduct that was unprovoked, unlawful, unconstitutional and which did cause harmful and/or offensive bodily contact to the Plaintiff and did deprive him of liberty.

53. That as a result of the aforementioned wrongful, negligent, careless, and reckless conduct of the aforesaid Defendants, Plaintiff sustained the injuries herein alleged.

54. That the Plaintiff has suffered a severe shock to his nervous systems, and has become emotionally distressed thereto. That the Plaintiff's general health has been damaged and the functions of his body has been greatly impaired. That as a result of Defendants' intentional acts and negligence, the Plaintiff has been damaged in an amount to be determined after trial.

**FIRST CAUSE OF ACTION FOR WRONGFUL
ARREST AND UNLAWFUL SEIZURE UNDER
42 USC §1983
AS AGAINST DEFENDANTS CITY, P.O. JONATHAN
EPPS, DET. JASON MKEVITT, DET. JESSICA
HERRERA, SGT. DET. STEVEN CHEI and JOHN
DOES #1 THROUGH 25**

55. Plaintiff repeats the foregoing allegations with the same force and effect as though here set forth at length.

56. That the above described conduct began on January 31, 2019 at the subject times and place by the defendants CITY and NYPD through and/or by the actions of their agents, servants and employees, namely NYPD DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE OFFICERS JOHN DOES # 1-25 and constitutes negligent investigation, false arrest and false imprisonment on the aforementioned charges without probable cause in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. That at the time of Plaintiff's arrest, Defendants NYPD DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE OFFICERS JOHN DOES # 1-25 acted under color of law and were exercising their responsibilities pursuant to state law and under the directives of the Defendants CITY and NYPD.

58. That at the time of Plaintiff's arrest, the Defendants CITY and NYPD through and/or by the actions of its agents, servants and employees, namely NYPD DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE

OFFICERS JOHN DOES# 1-25 lacked probable cause: (a) to believe that Plaintiff had committed a crime. The Defendants have failed to demonstrate that a crime was committed, properly investigate and make sufficient and relevant independent inquiry as to whether the information provided by the complaining civilian and any other facts that may merit further inquiry supports the making of an arrest; (b) to believe that the Plaintiff was about to commit the crime; and (c) to commence a criminal prosecution against Plaintiff based on the false criminal charges described above.

59. That at all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned Defendant officers as agents, servants and employees of each of Defendants CITY and NYPD who were at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

60. That by reason of the foregoing, Plaintiff was injured; was rendered sick, sore lame and disabled; was and or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.

61. That solely by reason of the above, the Plaintiff has been damaged in an amount equal to or in excess of the jurisdictional limits of this Court .

**AS A FOR A SECOND CAUSE OF ACTION FOR ABUSE
OF PROCESS AS AGAINST DEFENDANTS CITY, P.O.
JONATHAN EPPS, DET. JASON MKEVITT, DET.
JESSICA HERRERA, SGT. DET. STEVEN CHEI and
JOHN DOES #1 THROUGH 25, KINGS COUNTY
DISTRICT ATTORNEY's OFFICE
and ADA KEVIN O'DONNEL**

62. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 61 of this Complaint as though fully plead and re-alleged in their entirety below

63. Defendants demonstrated negligent and/or malicious investigation which is the part of the process preceding the arrest. Investigations shall begin when a victim or witness reports a suspected crime. In order to make charging decisions officers shall interview witnesses and collect inculpatory physical evidence (like fingerprints, carpet fibers, and bullet casings) and biological evidence (such as blood, hair, and bodily fluids), document their investigations with photographs, videos, and written reports that they submit to prosecutors and then use gathered evidence to make charging decisions. No inculpatory evidence was obtained prior to the arrest and Defendant's further obtained exculpatory evidence of the Plaintiff's innocence by his 3rd Court appearance and notwithstanding the same continued prosecuting him.

64. Defendant CITY and Defendant NYPD for many years had been promulgating the fact of being unable and consistently fail in efforts to fix long standing problems in the unit responsible for investigating sex crimes, The Special Victims Division, and particularly, to institute uniform policies for

handling cases or stabilize the leadership in the unit after a period of turnover. Said Unit was notoriously understaffed and overwhelmed and in an attempt to fix that problem, level of experience and expertise of the investigators staff drastically dropped as officials assigned unseasoned officers, training has been inconsistent, divisions lacked steady leadership - all of which resulted in countless investigation errors¹. Unit has undergone numerous investigations², turnovers and scandals³ which only added to the existing erosion⁴. All of those deformities had reflected on the performance of each and individual member, officer, investigator of the Unit.

65. At the time of Plaintiff's arrest Defendant DET. JASON MKEVITT, along with P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI used their legal authority to restrict Plaintiff's freedom of movement without presenting a warrant, reading him his Miranda rights and having no probable cause for his arrest.

66. The above described actions of the Defendants, more specifically the individually named DEFENDANT POLICE OFFICERS, constitute abuse of process due to their intentional, willful, and malicious fabrication of probable cause used to justify the unreasonable seizure and continued prosecution of the Plaintiff.

¹ <https://www.nytimes.com/2022/07/28/nyregion/nypd-doj-special-victims-investigation.html>

² <https://www.nbcnewyork.com/news/local/crime-and-courts/historical-issues-feds-open-probe-into-nypd-sex-crimes-unit-over-handling-of-cases/3757147/>

³ <https://www.pbs.org/newshour/politics/following-years-of-complaints-justice-department-to-probe-nypd-sex-crimes-unit>

⁴ <https://www.nytimes.com/2022/06/30/nyregion/nypd-sex-crimes-justice-department.html>

67. That as a result of the actions of said Defendants, Plaintiff was taken into police custody and in the process of interrogation was subjected to coercive demands in an attempt to place Plaintiff in duress so as to obtain a forced confession

68. Defendants deprived Plaintiff of any contact with legal counsel in an attempt to intimidate Plaintiff into refraining from exercising his constitutional rights.

69. That as a result of the actions of the named Defendants on February 1st 2019 Plaintiff was arraigned and charged with false Criminal charges including but not limited to Kidnapping - 2nd Degree, (PL. 135.20 [00x]), Criminal Sexual Act (PL.130.50 [04]), Act in Manner injure Child Less Than 17 (PL.260.10 [01]), Assault - 3rd Degree (PL. 120.00).

70. That as a result of the abused Criminal process Plaintiff was detained in Brooklyn House Detention Center, while there was assaulted by another inmate and suffered injuries to his face and mouth and accosted by other violent inmates who demanded money and food from him in order for him to remain unmolested.

71. That as the result of the actions of Defendants and abuse of the process, Plaintiff was transferred to Rikers Island where he remained for two weeks. On the second day when Plaintiff was transferred to Rikers Island, the Plaintiff was forced to remain in a police van from 9:30 am to 2:30pm with his wrists handcuffed behind his back resulting in permanent injury to his left arm and middle back.

72. That as the result the abuse of process Plaintiff was injured, rendered sick, sore, lame, and disabled, and was, or will be cause, to undergo medical treatment and advice, and has been unable to pursue his usual and regular activities due to the permanent nature of his injuries.

73. As a result of the Defendants CITY, NYPD's conduct as stated above, as well as the actions of the Defendants POLICE OFFICERS, Defendants KCDAO and ADA KEVIN O'DONNEL caused Plaintiff to suffer loss of liberty, severe shock to his nervous systems, emotional distress, physical and psychological injuries.

74. That solely by reason of the above, the Plaintiff has been damaged in an amount equal to or in excess of the jurisdictional limits of this Court .

AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION
AS AGAINST DEFENDANTS CITY, P.O. JONATHAN EPPS,
DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN
CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT
ATTORNEY's OFFICE and ADA KEVIN O'DONNEL

75. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 74 of this Complaint as though fully plead and re-alleged in their entirety below

76. That at all relevant times Police Officer JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, were agents

of the CITY, NYPD and KCDAO and acting within the scope of their duties as law enforcement officers and prosecutors.

77. That the CITY by and through its agents, servants and employees, including Defendants Police Officer JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, initiated and continued a criminal proceeding against Plaintiff in bad faith, insofar as these police officers, upon information and belief, upon review and investigation of the facts of the within matter became and or were made aware or should have been aware of exculpatory and or exonerating evidence in Plaintiff's favor, preceding the initiation of criminal proceedings, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect information to the CITY Prosecutors, ASSISTANT DISTRICT ATTORNEY KEVIN O'DONNEL, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked probable cause.

78. That the criminal proceedings and prosecution thereto terminated completely in Plaintiff's favor on or before September 7th 2023.

79. That the CITY lacked probable cause to commence and to continue the criminal proceeding against Plaintiff since, at all relevant times, the CITY, including its agents Police Officer JONATHAN EPPS,

DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, knew, and or possessed information, that Plaintiff's prosecution for the aforementioned charges lacked probable cause and that the Defendants could not evince any facts or circumstances which could lead a reasonable person to believe that Plaintiff was guilty of the crimes charged.

80. That the CITY lacked probable cause to commence and to continue the criminal prosecution against Plaintiff.

81. That the Defendants Police Officer JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, at all relevant times, were motivated by actual malice.

82. That at all relevant times, the Defendants' actions were motivated by bad faith, actual malice, and were not justified, excused or privileged.

83. That the aforementioned individual subject Defendants' actions were committed under color of state law and that these acts deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or Laws of the United States.

84. That by the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

85. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION UNDER CIVIL RIGHTS LAW 42 USC §1983 BEHALF OF PLAINTIFF AS AGAINST DEFENDANTS CITY, P.O. JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA KEVIN O'DONNEL

86. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1 through 85 of this Complaint as though fully pleaded and re-alleged in their entirety below.

87. That at all relevant times Police Officer JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, were agents of the CITY, NYPD and KCDAO and acting within the scope of their duties of employment as law enforcement officers and prosecutors.

88. That the CITY by and through its agents, servants and employees, including Defendants Police Officer JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, initiated and continued a criminal proceeding against Plaintiff in bad faith, insofar as these police officers, upon information and belief, upon review and investigation of the facts of the within matter became and or were made aware or should have been aware of exculpatory and or exonerating evidence in Plaintiff's favor, preceding the initiation of criminal proceedings, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect information to the CITY Prosecutors, ASSISTANT DISTRICT ATTORNEY KEVIN O'DONNEL, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked probable cause.

89. That the Defendants Police Officer JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and

JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNEL, at all relevant times, were motivated by actual malice.

90. That at all relevant times, the Defendants' actions were motivated by bad faith, actual malice, and were not justified, excused or privileged.

91. That the aforementioned individual subject Defendants' actions were committed under color of state law and that these acts deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or Laws of the United States.

92. That by the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

93. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
AS AGAINST DEFENDANTS CITY FOR MONELL
VIOLATIONS OF PLAINTIFFS CIVIL RIGHTS
UNDER 42 USC SECTION 1983

94. The Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 93, of this Complaint as though fully pleaded and re-alleged in their entirety below, inclusive, as if here fully set forth.

95. That the Fourth and Fourteenth Amendments of the Constitution of the United States protects the right to be free from unreasonable searches and seizures and from unlawful arrest.

96. That the City through the NYPD established a Special Victims Division (SVD) which investigates sex crimes. It is housed in separate Borough Patrols (Manhattan, the Bronx, Queens, Staten Island and Brooklyn). The Special Victims Division only investigates the following types of cases:

- Any child under 11 years of age who is the victim of abuse by a parent or person legally responsible for the care of the child.
- Any child under 13 years of age who is the victim of any sex crime or attempted sex crime.
- Any victim of rape (all degrees) or attempted rape (all degrees).
- Any victim of a criminal sexual act (all degrees) or attempted criminal sexual act (all degrees).

- Victims of aggravated sexual abuse (all degrees).
- Victims of sexual abuse 1st degree..

97. In June 2022, the Justice Department announced a federal investigation into the division's "*deficiencies*", including "failing to conduct basic investigative steps and instead shaming and abusing survivors and re-traumatizing them during investigations⁵.

98. That the Justice Department announced on June 30, 2022 that it had opened a civil pattern or practice investigation into the Special Victims Division (SVD) of the New York City Police Department (NYPD).

99. That the investigation will assess whether the SVD engages in a pattern or practice of gender-biased policing.

100. That the investigation will include a comprehensive review of the policies, procedures and training for SVD investigations of sexual assault crimes, including how SVD interacts with survivors and witnesses, collects evidence and completes investigations; any steps NYPD has taken to address deficiencies in its handling of sexual assault crimes; how SVD allocates staffing and other resources; and the services and support offered to survivors of sexual assault. As part of this investigation, the Justice Department officials will reach out to community groups and members of the public to learn about their experiences with SVD.

5

<https://www.justice.gov/opa/pr/justice-department-announces-investigation-new-york-city-police-department-special-victims>

101. That these Special Victims Department investigatory practices were required to conform and be consistent with the Fourth, Fifth and fourteenth Amendments of the Constitution of the United States which protects the right to be free from unreasonable searches and seizures, from unlawful arrest and malicious prosecution and from unconstitutional suppression of exculpatory evidence or deliberate indifference thereto.

102. That the Justice Department received information alleging deficiencies at SVD that have persisted for more than a decade, depriving survivors and the public of the prompt, thorough and effective investigations needed to protect public safety. These deficiencies allegedly include failing to conduct basic investigative steps and instead shaming and abusing survivors and re-traumatizing them during investigations

103. That the Justice Department investigation is being conducted pursuant to the Violent Crime Control and Law Enforcement Act of 1994, which prohibits state and local governments from engaging in a pattern or practice of conduct by law enforcement officers that deprives individuals of rights protected by the Constitution or Federal Law. The act allows the Justice Department to remedy such misconduct through civil litigation. The department will be assessing law enforcement practices under the Fourteenth Amendment to the U.S. Constitution, as well as the Safe Streets Act of 1968

104. That is consistent with the pattern and practice of deficiencies noted above by the Justice Department, the City failed to take the steps necessary to properly train, supervise or otherwise instruct its SVD and other

sex crimes officers, including but not limited to OFFICER JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, in the proper grounds for making arrests in minority majority neighborhoods of New York City for the prosecution of sex crimes; the proper and strict adherence to their duties and obligations not file false criminal charges and thus abuse process to shield themselves from liability as against those individuals whom they have knowingly wronged.

105. That at the time of Plaintiff's arrest, the Defendants CITY and NYPD through and/or by the actions of their agents, servants and employees, namely NYPD DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE OFFICERS JOHN DOES# 1-25 in addition to their failure to properly investigate the alleged crime consistent with the practices and patterns of the SVD acted with malice, hatred and structural racial animus⁶ towards Plaintiff as the motivation for their fabricated and false charges including but not limited to Kidnapping - 2nd Degree, (PL. 135.20 [00x]), Criminal Sexual Act (PL.130.50 [04]), Act in Manner Injure Child Less Than 17 (PL.260.10 [01]), Assault - 3rd Degree (PL. 120.00).

106. Defendant City and all their principals thereto knew or should have known to a moral certainty from multiple public sources, including but not limited, decades long mainstream media and alternative media news reports and articles on television both Nationally and locally, internet and

⁶<https://abcnews.go.com/US/york-governor-declares-racism-public-health-emergency-amid/story?id=82002884>

social media, internal police investigations, racial advocacy group reports and other non-governmental organization reports, of the unequal, unconstitutional, improper⁷, nontransparent⁸ and racially discriminatory enforcement of laws regarding gender-based crimes⁹ committed by minorities in minority majority neighborhoods of New York City and in particular, such enforcement activities by officers of the JONATHAN EPPS, DET. JASON MKEVITT, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI and JOHN DOES #1 THROUGH 25, KINGS COUNTY DISTRICT ATTORNEY's OFFICE and ADA NAMELY KEVIN O'DONNELL, that among other things enabled Detective Jason McKevitt to fabricate and or incorporate an unsupported pretextual basis to stop and arrest Plaintiff, to wit a failure to use a turn signal and marijuana possession accusation, and, - because of systemic racism and a failure to properly train, supervise and, retain said police officer(s) against, among things, such reflexive systemic racism, he or she, and in this case Detective Jonathan McKevitt, Officer Jonathan Epps, Detective Sergeant Steven Chei, Detective Jessica Herrera concocted and fabricated false charges and then covered up and concealed their wrongdoing by falsely arresting and subsequently failing to properly investigate exculpatory evidence resulting in numerous acts of constitutional violations of the rights of Plaintiff ¹⁰.

⁷<https://slate.com/news-and-politics/2024/02/doj-police-failures-sexual-assault-cases.html>

⁸<https://www.pbs.org/newshour/nation/nypd-officers-will-have-to-record-race-of-people-they-question-in-la-w-aimed-at-police-transparency>

⁹<https://www.justice.gov/opa/pr/justice-department-announces-investigation-new-york-city-police-department-s-s-pecial-victims>

¹⁰ <https://www.sentencingproject.org/reports/one-in-five-disparities-in-crime-and-policing/>

The Sentencing Project. One in Five: Disparities in Crime and Policing, November 2023

107. Looking at the sex crimes police investigations in totality by the sex crimes unit, existing research demonstrates that cases involving persons of color were more likely to have a presumptive suspect identified initially before the rape kit could be submitted to the crime lab for analysis. Further, victims of color—more specifically, Black victims—were more likely to be deemed uncooperative or otherwise disruptive to the investigation by police. This results in fewer investigative steps being completed throughout the investigation, including a suspect lineup, suspect interview, arrest, and referral to the prosecutor¹¹.

108. That the City of New York by and through its various law enforcement agencies, including but not limited to the NYPD and District Attorney's offices throughout the City of New York, have promulgated policies and or facilitated structural and systematic practices and patterns in the investigation and prosecution of sex crimes that have resulted in systemic gender¹² and racial bias within the NYPD Special Victims Division

109. That as a result of these established violatory customary practices Plaintiff and others similarly situated have suffered disproportionate, disparate and unconstitutional enforcement of sexual crime laws by said defendant police officers in minority majority New York City neighborhoods, all of which

¹¹<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC6796211/>

¹²<https://www.justice.gov/opa/pr/justice-department-announces-investigation-new-york-city-police-department-s-special-victims#:~:text=The%20Justice%20Department%20announced%20today%20that%20it%20has,in%20a%20pattern%20or%20practice%20of%20gender-biased%20policing.>

impact and affect minorities in an unconstitutional and illegal manner inconsistent with their constitutional rights thereto.

110. “Many studies have examined prosecutor action and decision-making in the context of sexual assault cases. About half of the studies that have examined the influence of race in charging decisions found no significant effect. Studies that do find a significant effect of race find that cases involving white victims and suspects of color—more specifically, Black and Hawaiian suspects—are more likely to be charged, and to be charged with more serious crimes. Following initial charging, though, these cases are more likely to be dropped.”¹³

111. That NYPD promulgated its patrol guide, particularly including Procedure 208.01 which requires that a police officer have reasonable cause to believe that a crime has been committed by the person arrested before taking that person into custody, but that policy has been systematically ignored by the officers of NYPD.

112. That Officers who are motivated by “*getting the right person*” have acquired a well-deserved reputation of ignoring the Patrol Guide and making unfounded arrests in order to intimidate members of non-white minority races into fearing the NYPD.

¹³<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC6796211/>

113. Plaintiff is a member of an African American minority group¹⁴, Jamaican ancestry.

114. The Sentencing Project studies (One in Five: Disparities in Crime and Policing) interrogates large footprint of policing - particularly Black Americans, calling for needed “durable investments in disadvantaged urban neighborhoods that match persistent and long lasting nature of institutional disinvestment that such neighborhoods have endured over many years.” Extensive flagship studies rooted in a legacy of structural racism, left generations of Black people with disproportionately less wealth and education, lower access to healthcare, less stable housing and differential exposure to environmental harms. Troubling is higher correspondence between arrest and imprisonment disparities for the most serious crimes. People of color’s higher rates of arrests for those crimes often do not reflect a higher rate of criminal offending and contribute to racial differences in prison population.

115. The City and the NYPD and its relevant principals, as the final decision maker, and as a matter of practice and policy thereto exercised deliberate indifference as to Plaintiff’s constitutional rights by failing to take remedial actions such as providing adequate training, supervision, retraining and disciplining of such NYPD Officers on the requirements of probable cause before making arrests, the wrongfulness of abuse of process, and the necessity to avoid failures to intervene by NYPD Officers where individuals being

¹⁴<https://www.thecity.nyc/2020/06/09/black-new-yorkers-describe-racism-as-inescapable-in-quietly-release-d-human-rights-report/>

subjected to wrongful conduct by other NYPD Officers is occurring in their presence.

116. That the conduct of the Defendants CITY and DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE OFFICERS JOHN DOES# 1-25 violated Plaintiff's rights under 42 USC Section 1983, the Fourth and Fourteenth Amendment, the Constitution of the United States and the laws of New York State by failing to properly train, supervise and retrain officers of the NYPD in among other things, making arrests involving charges of sexual assault in minority majority New York City Neighborhoods, failing to adequately discipline the subordinate agents of the Special Victims Squad, failing to adequately investigate prior complaints against the Defendant subordinate agents and employees, and by acting in a manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees in violation of state and federal law.

117. That the aforementioned individual subject NYPD and Special Victims Squad Defendants' actions were committed under color of state law and that these acts deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.

118. As a direct and proximate result of the misconduct and abuse detailed above, Plaintiff experienced deprivation of his right to liberty, loss of his job and his ability to pursue his vocation, personal injuries, conscious pain, emotional distress, mental anguish, embarrassment, and humiliation.

119. That solely by reason of the above, the Plaintiff has been damaged in an amount in excess of the jurisdictional limits of any lower court in which this action could be maintained.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR FAILURE TO INTERVENE UNDER 42 USC § 1983 AS AGAINST
DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA
HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE
OFFICERS JOHN DOES# 1-25.

120. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-119 of this Complaint as though fully pleaded and re-alleged in their entirety below.

121. That the Fourth Amendment and Fourteenth of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.

122. That the Defendants NYPD Officers, Special Victims Division Detectives including but not limited to John and Jane Does# 1-25 and ADA Kevin O'Donnell had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other police officers, Detectives and agents.

123. That said Defendants failed to intervene to prevent the unlawful conduct described herein.

124. That the aforementioned NYPD, SVD Defendants' actions were committed under color of state law and that these acts "deprived plaintiff of

rights, privileges, or immunities secured by the Constitution or laws of the United States.”

125. That the subject NYPD officers who were present while Plaintiff was wrongfully arrested by fellow NYPD officers and failed to intervene to prevent other law enforcement officers from infringing the constitutional rights of citizens are liable under § 1983 as those officers had reason to know: that the arrest was unsupported by a warrant or reasonable suspicion, that the claim of alleged marijuana possession, actual or constructive, was a pretext adopted by Defendants DETECTIVE JASON MCKEVITT, P.O. JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY JORDAN, POLICE OFFICERS JOHN DOES# 1-25 to cover up and conceal their wrongdoing, and as part of a common scheme to intimidate Plaintiff and otherwise residents of East New York from exercising their right to be secure in their persons and effects.

126. That as a result of the foregoing, Plaintiff's was unwarrantedly arrested, suffered abuse of process, false arrest and false imprisonment on false charges and he was put in fear of his safety, and he was humiliated and subject to other physical constraints and injuries.

127. By the reason of the foregoing, Plaintiff, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, suffered the loss of his employment and has been put at risk of being disqualified from pursuing his vocation, some of which injuries are permanent in nature and

duration, and Plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; Plaintiff has incurred and in the future will necessarily incur further legal expense, loss of income, hospital and/or medical expenses in an effort to be cured of such said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; Plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

128. That solely by reason of the above, the Plaintiff has been damaged in an amount in excess of the jurisdictional limits of any lower court in which this action might be maintained.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS UNDER STATE AND
FEDERAL 42 USC § 1983 AS AGAINST DETECTIVE JASON MCKEVITT, P.O.
JONATHAN EPPS, DET. JESSICA HERRERA, SGT. DET. STEVEN CHEI, P.O. GARY
JORDAN, POLICE OFFICERS JOHN DOES# 1-25

129. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-128 of this Complaint as though fully pleaded and re-alleged in their entirety below.

130. That the Fourth Amendment and Fourteenth of the Constitution of the United States protects the right to be free from unreasonable searches and

seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.

131. That by their conduct, defendants Detective Jason Mckevitt, P.O. Jonathan Epps, Det. Jessica Herrera, Sgt. Det. Steven Chei, P.O. Gary Jordan, Police Officers John Does# 1-25, under state law and under color of law, pursuant to U.S.C §1983, deprived Plaintiffs of their State and Federal constitutional right to be free from unreasonable disparate treatment and deliberate indifference predicated on policing that was permeated with structural racial animus and or bias as against black and brown persons in violation of the Fourteenth Amendment of the Federal and State Constitutions.

132. That the Fourteenth Amendment of the United States constitution provides the right of equal protection from discrimination based on race and other immutable characteristics.

133. That Plaintiff is a Jamaican American thereby placing him in a protected class of individuals recognized by the Constitution of the United States.

134. That from the Plaintiff's arrest in 2019 through on to his prosecution and final termination of the case in his favor, Police officers of the SVD unit made serial constitutional violations of the Plaintiffs rights.

135. That Upon information and belief, Defendants at all relevant times were aware and or could and should have been aware that as a result of the policy, practices, patterns and customs of deficient sex crimes investigations within the SVD units, that their arrest and or prosecution of the Plaintiff was

and or could have been subject to the disparate, unconstitutional and racist impact deficient SVD criminal investigations were having upon black and brown residents thereof.

136. That Defendants qualified immunity in this instance is overcome by Plaintiff's U.S.C §1983 cause of action because the Plaintiff's constitutional rights were violated under the equal protection clause of the Fourteenth amendment, and the Defendant officers knew or reasonably should have known that Plaintiff's constitutional rights to equal treatment under the law were clearly established at the time and that his arrest and or prosecution by the SVD unit might be undermined by negligent and racist policing plaguing the NYPD SVD units.

137. That the Defendants are liable in both their official and individual capacities for presumed and actual damages sustained by the Plaintiffs as a result of their wrongful conduct

138. That in committing the acts described above, Defendants acted intentionally and/or recklessly in deliberate disregard of the high degree of probability of the emotional distress that Plaintiffs would suffer.

139. That the conduct of all of the Defendants was so outrageous and extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

140. That the Defendants' conduct was so shocking and outrageous that it exceeds the reasonable bounds of decency as measured by what the

average member of the community would tolerate and demonstrates an utter disregard by them of the consequences that would follow.

141. That the Defendants knew that the foregoing reckless, extreme, and outrageous conduct would inflict severe emotional and psychological distress, including personal physical injury, on others, and Plaintiffs did in fact suffer severe emotional and psychological distress and personal physical injury as a result, including severe mental anguish, humiliation and emotional and physical distress.

142. As a direct and proximate result of the intentional, and outrageous actions of Defendants, Plaintiffs suffered and will continue to suffer physically, emotionally, and otherwise.

143. As a result of the foregoing, Plaintiffs sustained physical, emotional, and Psychological injuries, along with pain and suffering in an amount of damages which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiffs demand judgment on all their Causes of Action in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with the costs and disbursements of these actions.

Dated: New York, NY
September 5, 2024

Yours, etc

/S/
Rehan Nazrali, Esq.

Attorneys for Plaintiff

299 Broadway
Suite 1700
New York, NY 10007
(646)331-9378
rnazraliesq@gmail.com

ATTORNEY VERIFICATION

REHAN NAZRALI, ESQ., an attorney admitted to practice in the courts of New York State, states as follows: I am attorney of record for the Plaintiffs Damion Morgan and Sandy Morgan to wit Plaintiffs herein, in the within complaint, I have read the foregoing **Verified Complaint** and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by the Plaintiffs is because they do not reside in the county where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are information contained in the file and communications with my client(s). I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
09/05/2024

/S/

Rehan Nazrali, Esq.
299 Broadway, 17 Floor
New York, NY 10007
(646) 331-9378